

KAVANAUGH, J., concurring in part

opinion in *Burnet*, Justice Brandeis described the Court's practice with respect to *stare decisis* in constitutional cases in a way that was accurate then and remains accurate now: In "cases involving the Federal Constitution, where correction through legislative action is practically impossible, this Court has often overruled its earlier decisions." 285 U. S., at 406–407 (dissenting opinion).

That said, in constitutional as in statutory cases, to "overrule an important precedent is serious business." Jackson, 30 A. B. A. J., at 334. In constitutional as in statutory cases, adherence to precedent is the norm. To overrule a constitutional decision, the Court's precedents on precedent still require a "special justification," *Allen v. Cooper*, 589 U. S. 248, 259–260 (2020) (internal quotation marks omitted); *Arizona v. Rumsey*, 467 U. S. 203, 212 (1984), or otherwise stated, "strong grounds," *Janus*, 585 U. S., at 917.

In particular, to overrule a constitutional precedent, the Court requires something "over and above the belief that the precedent was wrongly decided." *Allen*, 589 U. S., at 259–260 (internal quotation marks omitted). As Justice Scalia put it, the doctrine of *stare decisis* always requires "reasons that go beyond mere demonstration that the overruled opinion was wrong," for "otherwise the doctrine would be no doctrine at all." *Hubbard v. United States*, 514 U. S. 695, 716 (1995) (opinion concurring in part and concurring in judgment). To overrule, the Court demands a special justification or strong grounds.

But the "special justification" or "strong grounds" formulation elides a key question: What constitutes a special justification or strong grounds?³ In other words, in deciding

³The Court first used the term "special justification" in the *stare decisis* context in 1984, without explaining what the term might entail. See *Arizona v. Rumsey*, 467 U. S. 203, 212. In employing that term, the Court did not suggest that it was imposing a new *stare decisis* requirement as opposed to merely describing the Court's historical practice with respect to *stare decisis*.